

24SMCV01071 24SMCV01071

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Case Number: 24SMCV01071 Hearing Date: August 20, 2026 Dept: 205

Superior Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

DAVID GOMEZ,

Plaintiff,

v.

NEXT HEALTH, INC., et al.,

Defendants.

Case No.: 24SMCV01071

Hearing Date: August 20, 2026

[TENTATIVE] order RE:

defendant NEXT HEALTH, INC.'S

MOTION FOR Summary judgment

BACKGROUND

This is a personal injury case arising from use of a sauna at a wellness spa. On December 10, 2023, Plaintiff David Gomez visited Defendant Next Health's facility to undergo "Infrared LED Light Bed Therapy". (Separate Statement of Undisputed Material Facts ("UMF") No. 1.). Plaintiff alleges the "Infrared LED Light Bed Therapy" at Defendant's facility caused third-degree burns to his abdomen. (UMF No. 2.). Plaintiff alleges that prior to receiving the treatment and entering the red-light therapy bed, he told Defendant's staff that he had abdominal scars from a prior hernia surgery, and asked whether the bed posed any health risks to him. (UMF No. 4.).

The operative complaint alleges two claims for (1) negligence and (2) strict products liability. The Court dismissed the strict liability claim. As to the negligence claim, Plaintiff alleges Defendant was negligent because (1) it failed to ensure, inspect, and/or otherwise maintain the sauna bed that Plaintiff used; (2) it did not ensure the safety and proper operation of the red light bed used for the treatment; (3) it misrepresented the safety and monitoring protocols of the treatment; (4) it failed to perform a mandatory physical examination of Plaintiff prior to the treatment, despite being expressly informed by Plaintiff of his pre-existing scars; (5) it provided false assurances to Plaintiff regarding the safety of the treatment for individuals with pre-existing scars; and (6) Defendant failed to properly administer and/or supervise the treatment provided to Plaintiff. (Compl. paragraph 23.)

At his deposition, Plaintiff testified that his scar from his hernia surgery was healed at the time of the subject incident. (UMF No. 9.) Plaintiff did not have any open wounds on December 10, 2023. (UMF No. 11.) Plaintiff underwent a Good Faith Examination at Next Health. (UMF No. 12.) Plaintiff testified that he did not inform the lady who worked at Next Health that he had a scar on his abdomen, just that he had a prior hernia surgery. (UMF No. 14.)

Plaintiff testified that he felt heat on his scar about three to four minutes into the treatment. (UMF No. 20.) Plaintiff further testified that he felt burning on his scar during the whole duration of the session for approximately thirty to forty-five minutes. (UMF No. 23.) Even though Plaintiff felt heat on his scar, he testified that he remained in the sauna bed for the duration of the treatment which lasted another thirty to forty minutes. (UMF No. 21.) Plaintiff was able to lift the lid of the sauna bed and get out on his own accord if he wanted to. (UMF No. 24.). Even though Plaintiff felt heat and a burning sensation to his scar, he did not open the lid to the sauna bed. (UMF No. 25.)

Kai Belveal is the director of field training at Next Health Inc. (UMF No. 28.) Mr. Belveal was produced as the person most knowledgeable concerning Defendant's guidelines and protocols and the infrared sauna machine at Next Health. (UMF No. 29, 30.) At the time of the incident, December 10, 2023, Mr. Belveal was the training and development manager at Next Health. (UMF No. 31.) Mr. Belveal trains Defendant's employees on screening methods and the various contraindications that they should try and detect. (UMF No. 32-33.)

According to Mr. Belveal, Next Health employees are not required to perform any sort of physical examination of the client prior to services. (UMF No. 35.) There are no additional screening methods for a person undergoing the infrared sauna. (UMF No. 36.)

Mr. Belveal testified that given there were not any contraindications indicated by Plaintiff, there would not be any general contraindications for services. (UMF No. 37.) Mr. Belveal testified that based on the medical team, Plaintiff's six prior hernia repair surgeries would not subject Plaintiff to any additional risk. (UMF No. 38.) Mr. Belveal would not consider Plaintiff's six prior hernia repair surgeries to be a contraindication for use of the infrared sauna. (UMF No. 39.). Mr. Belveal testified that if a wound is healed, such as in a prior hernia surgery, this would not be considered a contraindication. (UMF No. 40.).

Mr. Belveal testified that "Indirect LED/infrared light is not known to burn skin". (UMF No. 41.). Mr. Belveal testified that LED light is not typically something that would produce a lot of heat, so indirect exposure would not lead to burns. (UMF No. 44.).

For the past seven years since Mr. Belveal has worked for Next Health, he was never informed of any other incidents where a client's surgical wound has reopened or been burned as a result of any treatment received at Next Health. (UMF No. 42.). To Mr. Belveal's knowledge, Plaintiff's incident is the only incident of its kind of which he is aware. (UMF No. 43.).

This hearing is on Defendant's motion for summary judgment. Defendant argues that (1) Plaintiff cannot show it breached its duty of care because a sauna bed is not typically something that would produce a lot of heat so indirect exposure would not lead to burns, a prior surgery is not a contraindication and in any event, Plaintiff did not disclose the prior surgery or the scar, and (2) Plaintiff cannot show causation because he felt a burn on his scar while using the sauna bed and yet stayed inside the bed for another 30-45 minutes even though he could manually open the lid to the bed himself.

LEGAL STANDARD

In evaluating a motion for summary judgment, the Court engages in a three-step process. First, the Court identifies the issues framed by the pleadings. The pleadings define the scope of the issues on a motion for summary judgment. (*FPI Dev. Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381-382.) Because a motion for summary judgment is limited to the issues raised by the pleadings (*Lewis v. Chevron* (2004) 119 Cal.App.4th 690, 694), all evidence submitted in support of or in opposition to the motion must be addressed to the claims and defenses raised in the pleadings.

The court cannot consider an impleaded issue in ruling on a motion for summary judgment. (*Roth v. Rhodes* (1994) 25 Cal.App.4th 530, 541.) The papers filed in response to a motion for summary judgment may not create issues outside the pleadings and are not a substitute for an amendment to the pleadings. (*Tsemetzin v. Coast Federal Savings & Loan Assn.* (1997) 57 Cal. App.4th 1334,1342.)

Second, the Court must determine whether the moving party has met its burden. A moving party meets its burden by producing evidence to meet each element of its cause(s) of action. Third, once the moving plaintiff has met its initial burden, the burden shifts to the opposing party to show that a material factual issue exists as to the cause(s) of action alleged or the affirmative defense(s) claimed.

In ruling on the motion, the Court must consider the evidence and inferences reasonably drawn therefrom in the light most favorable to the opposing party. (*Aguilar*, 25 Cal.4th at 843.) Summary judgment is properly granted only if the moving party's evidence establishes that there is no issue of material fact to be tried. (*Lipson v. Super. Ct.* (1982) 31 Cal.3d 362, 374.)

DISCUSSION

Plaintiff's negligence claim is based on several alleged breaches: (1) Defendant failed to ensure, inspect, and/or otherwise maintain the sauna bed that Plaintiff used; (2) Defendant did not ensure the safety and proper operation of the red light bed used for the treatment; (3) Defendant misrepresented the safety and monitoring protocols of the treatment; (4) Defendant failed to perform a mandatory physical examination of Plaintiff prior to the treatment, despite being expressly informed by Plaintiff of his pre-existing scars; (5) Defendant provided false assurances to Plaintiff regarding the safety of the treatment for individuals with pre-existing scars; and (6) Defendant failed to properly administer and/or supervise the treatment provided to Plaintiff. (Compl. paragraph 23.)

Defendant's motion for summary judgment does not address at least some of these alleged breaches, including, most obviously, that Defendant failed to ensure, inspect and/or otherwise maintain the sauna bed. "If a plaintiff pleads several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. . . ." [Citation.] (*Teselle v. McLoughlin*, (2009) 173 Cal.App.4th 156, 164.) Accordingly, the Court concludes that Defendant has not shown there is no triable issue as to its breach of a duty of care.

On the issue of causation, Defendant argues that Plaintiff felt burns on his scar and should have gotten out of the sauna bed himself. Plaintiff's own conduct can be the sole proximate cause, or superseding cause, of his or her harm and relieve a defendant of liability. (See e.g., *Fredette v. City of Long Beach* (1986) 187 Cal.App.3d 122, 133.) The issue of superseding cause "is concerned with whether or not, assuming that a defendant was negligent and that his negligence was an actual cause of the plaintiff's injury, the defendant should be held responsible for the plaintiff's injury where the injury was brought about by a later cause of independent origin." (*Akins v. County of Sonoma* (1967) 67 Cal.2d 185, 199.)

This inquiry “revolves around a determination of whether the later cause of independent origin, commonly referred to as an intervening cause, was foreseeable by the defendant or, if not foreseeable, whether it caused injury of a type which was foreseeable. If either of these questions is answered in the affirmative, then the defendant” is liable “towards the plaintiff; if, however, it is determined that the intervening cause was not foreseeable and that the results which it caused were not foreseeable, then the intervening cause becomes a supervening cause and the defendant is relieved from liability for the plaintiff’s injuries.” (Id.) “[F]or an intervening act properly to be considered a superseding cause, the act must have produced ‘harm of a kind and degree so far beyond the risk the original tortfeasor should have foreseen that the law deems it unfair to hold him responsible.’” (Kahn v. East Side Union High School (2003) 31 Cal.4th 990, 1016-1017.)

Here, Defendant’s papers do not address these principles, and therefore, the Court cannot properly determine whether it was foreseeable to Defendant that a customer would remain in the sauna bed even after feeling some burns particularly if (as Plaintiff claims) Defendant had assured Plaintiff of the safety of the treatment.

CONCLUSION AND ORDER

Based on the foregoing, the Court DENIES Defendant’s motion for summary judgment.

IT IS SO ORDERED.

DATED: August 20, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court